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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved On : 02.09.2026

Delivered On : 10.2026

CORAM

THE HON'BLE MR.JUSTICE RAJNISH PATHIYIL

WP(MD) No. 2542 of 2019

A.Mariappan,
BT Assistant,
C.M.M.L.High School,
Vadamalapuram P.O-627 755,
Mullikulam Via, Kadayanallur Tk,
Tirunelveli Dist.

..Petitioner(s)

Vs

1. The Government Of Tamilnadu
   Rep. By Its Secretary To Government, (school Education And Elementary Education Department) Fort St.George, Chennai-600 009.

2. The Chief Educational Officer
   Tirunelveli, Tirunelveli Dist.

3. The District Educational
   Officer, Sankarankovil, Tirunelveli Dist.

4. The Manager,
   C.M.M.L. High School,
   Vadamalapuram P.O-627 755,
   Mullikulam Via, Kadayanallur Tk,
   Tirunelveli Dist.

..Respondent(s)

PRAYER: To issue a writ of Certiorarified Mandamus, calling for the records relating to G.O.Ms.No.83 School Education (Elementary Education 1 (2)) Department dated 28.4.2017 of the 1st respondent herein in so far as the clause giving incentive increments to the SC and ST Graduate Teachers alone who were appointed between 1997 to 2000 and

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the clause not giving monetary benefits from the date of appointment or date of passing additional degree alone and quash the same and consequently direct the respondents 1 and 2 herein to award incentive increments to the petitioner for his M.A degree with effect from May 2006 respectively with all attendant benefits and privileges based on the judgment reported in 2008 (5) MLJ 1349.

For Petitioner(s): Mr.T. Pon Ramkumar
For Respondent(s): Mr.P.Pethu Rajesh
Additional Government Pleader
for R1 to R3

ORDER

This writ petition is filed seeking for issuance of a writ of Certiorarified Mandamus to call for the records relating to the G.O.Ms.No. 83, School Education (Elementary Education 1) Department dated 28.04.2017 of the 1st Respondent, insofar as it confines incentive increments for additional qualification to Scheduled Caste and Scheduled Tribe Graduate Teachers appointed between 1997 and 2000, and insofar as it withholds monetary benefit from the date of appointment or date of acquiring higher qualification, and to quash the same and to consequently direct the respondents 1 and 2 to award incentive increment to the petitioner.

2. The petitioner, possessing a B.A. degree (1988) and a B.Ed. degree (1989), and belonging to the Backward Class community, was appointed as a Secondary Grade Teacher in the 4th respondent's school

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on 04.01.1996, in the absence of eligible diploma-holding candidates, on condition that he would not claim the salary or incentive increment applicable to a Graduate Teacher. The 2nd respondent approved this appointment from the date thereof.

3. Similar appointments of Graduate Teachers as Secondary Grade Teachers, made under G.O.Ms.No.559, were challenged before the Principal Bench of this Court and an Hon'ble Division Bench in ***Secretary Correspondent Uswathun Hasana Oriental (Arabic) Girls Higher Secondary School v. State of Tamil Nadu***, **2002 Writ LR 173**, directed the Government to approve appointments made between 11.07.1995 and 19.05.1998, leaving it open to prescribe the requisite training in order to approve the appointment. Pursuant to the order, G.O.Ms.No.155, Education Department, dated 03.10.2002, required such teachers to undergo one month training, on completion of which alone they would be eligible for salary. The petitioner accordingly underwent child psychology training from 02.05.2003 to 31.05.2003, following which the 1st respondent, by proceedings dated 15.10.2004, approved his appointment with effect from 02.06.2003, refixing his salary on the same condition.

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4. Separately, G.O.Ms.No.113, School Education (S1) Department, dated 14.3.1997, and G.O.Ms.No.301, School Education (B1) Department, dated 15.10.1999, designated certain Secondary Grade Teacher vacancies reserved for Scheduled Caste and Scheduled Tribe candidates during the period 1997-2000 as backlog vacancies, i.e., 1,340 and 1,152 posts respectively to be filled, for want of eligible Scheduled Caste/Scheduled Tribe candidates, by Graduate Teachers of the same community drawn from the employment exchange list, subject to an undertaking that they would draw only the Secondary Grade scale of pay, claim no incentive increment for their higher qualification, and seek no promotion or direct appointment as BT Assistant, in addition to undergoing the one month's training referred to above.

5. The petitioner, having obtained permission from the 4th respondent, obtained his M.A. (History) degree in 2006 and applied for incentive increment in 2007 on that basis. The respondents, after several representations by the petitioner, orally deferred the claim as pending before the Government. In 2012, the respondents called for particulars of similarly placed graduate teachers and the expenditure involved, without giving any further orders. The petitioner was promoted as BT Assistant in the 4th respondent's school on 31.3.2017.

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6. The 1st respondent thereafter issued the impugned G.O.Ms.No.83 dated 28.4.2017, relaxing the condition referred to in paragraph 4 above and permitting incentive increment for post-graduate qualifications such as M.A., M.Sc. and M.Ed. to be reckoned notionally from the date of appointment or of acquiring the qualification, with monetary benefit from the date of the G.O., in favour of Scheduled Caste and Scheduled Tribe Graduate Teachers appointed against the aforesaid backlog vacancies who continued to serve as Secondary Grade Teachers and for those who had since retired without promotion, the benefit was to be notional alone. When the petitioner made a representation for extension of this benefit, the 3rd respondent declined, on the ground that G.O.Ms.No.83 was confined to Scheduled Caste and Scheduled Tribe teachers appointed against the 1997–2000 backlog vacancies.

7. It is the case of the petitioner that the impugned G.O. is arbitrary and unsustainable insofar as it confines incentive increment to Scheduled Caste and Scheduled Tribe Graduate Teachers appointed within a specified time period, and withholds monetary benefit from the date of appointment or acquisition of the higher qualification. It is also his case that he, having been appointed as a Secondary Grade Teacher with graduate qualifications on terms materially identical to those governing

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the Scheduled Caste and Scheduled Tribe appointees, and having at no point claimed increment for his base qualification, is equally entitled to incentive increment for his M.A. degree.

8. It is the case of the petitioner that once the Government has resolved to grant such an incentive, it cannot restrict the benefit to Scheduled Caste and Scheduled Tribe candidates alone, or to a specified period, without extending it to similarly placed Graduate Teachers. It is the further case of petitioner that the 3rd respondent has, without assigning reasons, granted the benefit to Graduate Teachers appointed as Secondary Grade Teachers in the neighbouring districts of Virudhunagar, Madurai, Kanyakumari, Tuticorin and Tirunelveli, while denying it to the petitioner alone. He further contends that the object of incentive increments, namely to keep employees motivated through the fag end of their service, would stand defeated if the benefit is denied to him despite equal service.

9. The 3rd respondent has filed a counter affidavit on behalf of 1st and 2nd respondents as well. It is the case of the Respondents that G.O.Ms.No.83 relaxed the no-incentive condition exclusively for Scheduled Caste and Scheduled Tribe Graduate Teachers appointed

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against the specific backlog vacancies referred to in paragraph 4 above, and only for such of them who had continued to serve as Secondary Grade Teachers as on the date of the G.O. The learned counsel for the respondent would contend that the petitioner, neither being a Scheduled Caste/Scheduled Tribe appointee against those backlog vacancies nor being a Secondary Grade Teacher, having already been promoted as BT Assistant on 31.3.2017, falls outside the scope of the G.O. He would further contend that the Director of School Education had observed that the concept of backlog vacancies did not extend to aided schools, and had called for particulars by letter dated 28.5.2018 for issuing a separate G.O. for aided-school teachers, but no such G.O. or clarification has since been issued, rendering any sanction of incentive increment by the school management in the interim premature. He would further contend that by order dated 19.01.2021, the third respondent accordingly informed the petitioner that his claim would be considered only on receipt of specific orders from the Director of School Education.

10. By proceedings dated 28.08.2018, the second respondent sanctioned incentive increment to the petitioner for his M.A. (History) degree with effect from 01.04.2017. What remains in controversy is the incentive increment for the period from the date on which the petitioner acquired the degree in 2006 until 31.03.2017.

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11. It is on the above factual matrix, this writ petition falls to be examined.

12. The respondents have taken a stand that G.O.Ms.No.83 relaxed the no-incentive condition only for Scheduled Caste and Scheduled Tribe Graduate Teachers appointed against the backlog vacancies between 1997 and 2000, who continued as Secondary Grade Teachers on the date of the Government Order. The petitioner, it is said, is neither such an appointee nor a Secondary Grade Teacher, having been promoted as BT Assistant on 31.03.2017. The question is whether the petitioner can be denied incentive increment for his M.A. (History) degree on these grounds.

13. Before turning to the facts of the instant case, it is necessary to trace the scheme of incentive increment, for the petitioner's claim rests on the scheme and not on G.O.Ms.No. 83.

14. The scheme was first introduced by G.O.Ms.No. 42, Education Department, dated 10.01.1969. By that Government Order, the Government contemplated granting some kind of incentive payments to

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teachers in schools who acquire higher educational qualifications. The relevant portion of the Annexure to that G.O, is extracted hereunder:

> *"2. A Secondary Grade Teacher who after passing B.T. or B.Ed., degree examination qualifies for M.A., or M.Sc., or M.Ed., degree but working in Secondary Grade Post may be given advance increments for second time also i.e. Two advance increments after passing B.T. or B.Ed., degree and another two after passing M.A. or M.Ed., degree. B.T. Teachers who after passing M.A. or M.Sc., qualifies for M.Ed., degree examination but working in B.T. or Headmaster's post may be given advance increments after passing M.Ed., degree."*

15. The same position was followed in G.O.Ms.No. 1170, Education, Science and Technology Department, dated 20.12.1993, wherein it was stated that under G.O. 42, “the Secondary Grade Teachers are eligible for two incentive increments, i) for B.T., or B.Ed., and ii) another for M.A., or M.Sc., or M.Ed.”.

16. Thereafter, by G.O.Ms.No.1024, Education, Science and Technology Department, dated 09.12.1993, the Government substituted paragraph (ii) of the Annexure to G.O.Ms.No.42 and fixed a ceiling on the number of advance increments that can be awarded and the same is extracted hereunder:

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"(ii) A Secondary Grade Teacher who has passed B.T. Or B.Ed., degree examination and obtained two advance increments shall be eligible for another two advance increments for passing M.A., M.Sc or M.Ed., Degree while working either in the Secondary Grade post or in B.T/B.Ed., Assistant Post. A B.T.Teacher who after passing M.A., or M.Sc., and obtained two advance increments shall be eligible for another two advance increments is qualified M.Ed., Degree while working in B.T.Assistant Post or Headmaster post.

(ii) a) The maximum no. of advance increments which a Teacher can get under the scheme of incentive increments under this Government Order shall be four in his entire service."

17. A Secondary Grade Teacher who acquires an M.A. degree is thus within the general scheme. As to the object of the scheme and the manner in which it must be applied, the Hon'ble Division Bench in ***Premakumari (supra)*** held:

"8. We do not think the aforesaid observation of the learned single Judge can stand the scrutiny of logic or even reality. The obvious intention in granting an incentive increment is for attracting higher qualified people or for encouraging the existing employees to acquire higher qualification, even though in service, so that the quality of service would improve. This is obviously on the assumption that a higher qualified person could work more efficiently.

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Therefore, it defies logic as to why a person who had already qualified would not get an incentive increment, if such an incentive increment is given to a lower qualified person in service, who acquires subsequently such higher qualification. Such a differential treatment would not stand the scrutiny of right to equality as enshrined in Articles 14 and 16 of the Constitution."

18. Two aspects of the scheme are material to the present case. The increment is linked to the passing of the higher degree. The scheme also contemplates its grant to a teacher working in the Secondary Grade post, and does not make promotion as BT Assistant a condition for it. The total is limited to two incentive increments, equivalent to four advance increments, in the entire service. The petitioner has drawn no increment for his B.A. and B.Ed. qualifications, and the increment for his M.A. degree is well within that limit.

19. The condition on which the petitioner was appointed must be seen against this background. Graduate teachers such as the petitioner were appointed to Secondary Grade posts as there was a dearth of diploma qualified teachers. They were appointed on the condition that they would not claim the incentive increment applicable to a Graduate

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teacher. The petitioner has not claimed it for his B.A. and B.Ed. degrees. He has only claimed it for his M.A. degree, which he acquired ten years after joining service, after obtaining permission from the 4th respondent.

20. This Court has held more than once that an undertaking of this kind does not stand in the way of a claim for a higher qualification acquired later and thus the same is no longer *res integra*. In ***the State of Tamil Nadu v. V.S. Louis Rani***, **2011 SCC OnLine Mad 2968**, an Hon'ble Division Bench dealt with a Secondary Grade Teacher who had given such an undertaking at the time of joining and held as follows:

> *"4. It is not in dispute that the respondent herein has given an undertaking at the time of joining the teaching service that she would not claim any incentive since at that time she was holding degree qualification. So, she was appointed as Secondary Grade teacher in the fifth appellant school. Thereafter, she acquired higher qualifications viz., M.Sc., and M.Ed., Therefore, acquiring higher qualification will not in any way prevent the respondent from claiming incentive for higher qualifications. We do not find any infirmity in the order of the learned Single Judge dated 29.09.2010. Consequently, this Writ Appeal is liable to be dismissed."*

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21. Following ***Louis Rani (supra)***, this Court in ***S. Saleth Mary v. The Director of Elementary Education***, **CDJ 2012 MHC 4601**, took the same view and the relevant paragraph from the Judgment reads thus:

> *"8. In my considered view, the undertaking is misconceived by the Department. The undertaking is that the petitioner could not claim incentive increment for B.A. and B.Ed., Degree. Rightly, she has not claimed incentive increment for the said qualification. In similar circumstances, I allowed the Writ Petition by an order, dated 23.04.2012 in W.P. (MD) No. 6043 of 2010 in A. Mary v. The Director of Elementary Education, Chennai. The relevant passage from paragraph Nos. 10 & 11 in the said judgement is extracted hereunder:-*
>
> *As per the aforesaid Government Order, the petitioner is not entitled to claim incentive increments for her higher qualification viz., B.A., B.Ed., the B.T Assistants shall not be appointed against the Secondary Grade vacancy. In view of the dearth of qualified persons, pursuant to G.O.Ms. No. 539 Education (M1) Department, dated 21.04.1986, B.T. Assistants were appointed in Secondary Grade Post. The Government Order contemplates that the B.T or Tamil Pandits appointed to a Secondary Grade vacancy shall not claim incentive increment for higher qualification viz., graduation and B.Ed.*
>
> *11. In this case, the petitioner is not claiming incentive increments for B.A., and B.Ed. On the other hand, she is claiming incentive increment for M.Ed., which she studied after she joined as Secondary Grade Teacher. Hence, in my considered view, the impugned order, which refuses to grant incentive increments, on the ground that the claim for incentive*

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increment is contrary to G.O.Ms. No. 539, Education (M1) Department, dated 21.04.1986, has no basis."

22. The appeals filed by the State in a batch of matters, which included the appeal against the order in ***Saleth Mary (supra)***, were dismissed by an Hon'ble Division Bench of this Court in ***Director of Elementary Education v. The Correspondent, St. Joseph Middle School***, **2018 SCC OnLine Mad 13973** in the following terms:

> *"3. The reason for refusing the incentive increment is on ground that the writ petitioners when they were appointed had given an undertaking that they will not claim incentive increment when they acquire higher qualification.*
>
> *4. Similar issue was considered by the Division Bench in the case of State of Tamil Nadu v. Louis in W.A.(MD) No. 511 of 2011 dated 27.06.2011. After considering the objections raised by the Government, which is similar to objections raised in these appeals, the Court pointed out that the respondent therein, had acquired higher qualification M.Sc., and M.Ed., and acquiring higher education will not prevent the writ petitioners from claiming the incentive increment for higher qualification. Therefore, the order passed by the writ Court, granting relief to the teacher was affirmed and the appeal filed by the State was dismissed. The State preferred a special leave petition before the Hon'ble Supreme Court in Slp.C.C. No.*

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13056 of 2014, which was dismissed by an order dated 25.08.2014. It is seen that the judgment rendered by the Division Bench has been implemented by the Government in G.O.Ms. No. (3d) No. 13 School Education Department, dated 06.02.2015. The writ Court, took into consideration, the decision of the Division Bench in the case of Premkumari v. State of Tamil Nadu ((2008) 5 Mad LJ 1349), while granting relief to the writ petitioners."

23. From the above decisions, it follows that the condition on which the petitioner was appointed should be only to his B.A. and B.Ed. degrees. I therefore have no hesitation to hold that the undertaking on which the petitioner was appointed is no bar to his claim for incentive increment for the M.A. (History) degree which he acquired in 2006 while working as a Secondary Grade Teacher.

24. I now turn to the G.O. 83 that is impugned in this writ petition. The said G.O gave relaxation to the no-incentive condition that was imposed in favour of Scheduled Caste and Scheduled Tribe Graduate Teachers appointed against the backlog vacancies under G.O.Ms.No.113, dated 14.03.1997, and G.O.Ms.No.301, dated 15.10.1999. The petitioner was not appointed against those vacancies, and he does not fall within the specified category. Further, he does not need the relaxation of the

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condition, as it never covered his M.A. degree and thus his right to incentive increment does not hinge on this G.O. 83. His claim neither depends on the G.O 83 nor is defeated by it.

25. A similar course was adopted by an Order of this Court in ***A. Masanamuthu v. Government of Tamil Nadu and others***, **W.P.(MD) No.57 of 2019,** dated 28.02.2020, where a challenge to the very same Government Order was considered. After referring to ***R. Premakumari*** (supra) and ***St. Joseph Middle School*** (supra), the learned Single Judge held as follows:

> *"5.In view of the aforesaid settled propositions, the respondents may not be justified in placing reliance on the said GO, when the law on this aspect has been laid down much earlier in the aforesaid decisions. While that being so, the petitioner would be entitled for the incentive increments, without reference to the aforesaid GO."*

The said order was affirmed by a Division Bench of this Court in ***The Government of Tamil Nadu and another v. A. Masanamuthu and another***, W.A.(MD) No.442 of 2021, dated 08.07.2021.

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26. Since the petitioner's entitlement to incentive increment can be traced to the general scheme, it is unnecessary for this Court to examine whether the classification made in G.O.Ms.No.83 is sustainable. The matter, however, does not end there. The scheme of incentive increment has since been withdrawn. By G.O.Ms.No.37, Personnel and Administrative Reforms (FR-IV) Department, dated 10.03.2020, the Government cancelled the scheme in all departments. Clauses (i), (iv) and (vi) of paragraph 6 of that Government Order read as follows:

> *"i. As a policy decision, the scheme of sanction of advance increment for acquiring higher qualification in all departments and all orders issued by all departments for sanction of advance increment for possessing higher qualification, as a whole, be cancelled / dispensed with immediate effect.*
>
> *iv. The advance increment for acquiring higher qualification already granted to Government Servants need not be effected any recovery.*
>
> *vi. The cases of Government servants who have acquired higher qualification prior to issue of this general order, and not sanctioned with advance increments be examined separately as per the previous orders issued, if any, by the administrative department concerned and with reference to the posts specified in that order and if he is otherwise qualified, then the advance increment may be sanctioned by the administrative department concerned after obtaining concurrence of Finance department. If no*

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previous orders were issued by any of the department concerned, then they are not eligible for sanction of any advance increments for passing higher qualification irrespective of the post held / degree acquired."

27. By G.O.Ms.No.116, Personnel and Administrative Reforms (FR-IV) Department, dated 15.10.2020, the Government clarified that the cases of Government servants who had acquired higher qualification before 10.03.2020 and were not sanctioned advance increment may be examined under paragraph 6(vi) of G.O.Ms.No.37, and that orders were to be issued before 31.03.2021. Thereafter, by G.O.Ms.No.95, Human Resources Management (FR-IV) Department, dated 26.10.2023, the Government replaced the scheme with a lumpsum payment. Paragraph 7 of that Government Order reads as follows:

"7. Now, it has come to the notice of the Government that substantial number of claims are pending from candidates with higher educational qualifications. Hence, to expeditiously process and bring clarity to the scheme of granting incentive, in partial modification of the orders issued in the Government Order second and third read above and clarifications issued in the Governing Letter fourth read above, the cut-off date for sanction of advance increments for having acquired higher educational qualifications ended and the new scheme of sanction of lumpsum amount is ordered to take effect

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from 10.03.2020. Thus, the clarification issued in Government Order second read above and the Government Letter fourth read above are harmonized to ensure that, all pending applications as on 10.03.2020 and claims made subsequently for sanction of benefits for having acquired higher educational qualifications shall be disposed as per this new scheme of granting lump sum incentives only and not the earlier scheme of granting increments in salary. This principle would ensure expeditious disposal of all pending claims and also maintain parity and equal treatment between the claims pending as on date and for the persons acquiring higher educational qualifications in future also."

28. The validity of G.O.Ms.No.95 was upheld by an Hon'ble Division Bench of this Court in ***V. Padma and others v. State of Tamil Nadu and others***, in **W.A. No.1215 of 2024, batch,** dated 08.06.2026. The Division Bench held as follows:

"17. Regarding the cut off date fixed by the Government, the constitutional courts reiterated that fixing of cut off date for implementing certain financial concession cannot be construed as illegal. In the present case, grant of advance increment was cancelled in G.O.Ms.No.37 dated 10.03.2020 and the said date is fixed as cut off date, which cannot be said to be infirm. Fixing of cut off date while implementing the pay commission or

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concessions relating to payment of additional monetary benefits is inevitable and fixation of such cut off dates are recognised by the Courts. The Government Order deals with the pending applications as well as future applications. Therefore, cancellation of the policy of advance increment cannot be said to be in violation of the principles of law."

29. An Hon'ble Full Bench of this Court in ***S. Kalaiselvi v. State of Tamil Nadu,*** **W.P. No. 27261 of 2019, batch** dated 11.06.2026, while answering a reference on the entitlement of Middle School Headmasters to incentive increment for B.Ed. qualification, considered G.O.Ms.No. 37 and G.O.Ms.No.95 and held as follows:

"9. As far as applications pending prior to 10.03.2020, wherein advance increments are not sanctioned and applications submitted after the cut off date of 10.03.2020 are concerned, all such applications are to be strictly considered in accordance with the new scheme implemented by Government vide G.O.(Ms) No.95, Human Resources Management (FR-IV) Department dated 26.10.2023. Even in respect of applications submitted prior to the cut off date of 10.03.2020, no right accrued to employees and therefore, such applications are also to be considered in terms of G.O.(Ms) No.95, Human Resources Management (FR-IV) Department dated 26.10.2023."

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30. The decisions thus draw a clear line. Where the incentive increment was sanctioned before 10.03.2020, the employee is protected. Where it was not, the claim can be dealt with only under G.O.Ms.No.95, even if the application had been made before the cut-off date. G.O.Ms.No.37 itself, by paragraph 6(iv), preserves the increments already granted. The petitioner falls on the protected side of that line. The petitioner obtained permission before acquiring the degree well before 10.03.2020, and having claimed no increment for his B.Ed. qualification, is well within the limit of two incentive increments. His increment for the M.A. (History) degree was sanctioned by the proceedings of the second respondent dated 28.08.2018, more than a year and a half before 10.03.2020. In the result, the relief sought for is moulded.

31. In the result the writ petition is partly allowed. The prayer seeking to quash G.O.Ms.No 83, School Education (Elementary Education 1(2) Department, dated 28.04.2017, is rejected. The 1st and 2nd respondents are hereby directed to award the petitioner, incentive increment with effect from the date of acquiring M.A degree in the year 2006 and consequently the proceedings dated 28.08.2018 in Na.Ka.No.2892/A1/2018 is quashed insofar as it is restricting the sanction of incentive increment with effect from 01.04.2017.

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Accordingly, the arrears of incentive increment shall be disbursed to the petitioner within a period of eight (8) weeks from the date of receipt of a copy of this Order. There shall be no order as to costs. Consequently, the connected miscellaneous petition is closed.

-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

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To

1. The Secretary To Government,
   Government of Tamilnadu
   (School Education And Elementary Education Department)
   Fort St.George, Chennai-600 009.

2. The Chief Educational Officer
   Tirunelveli, Tirunelveli Dist.

3. The District Educational
   Officer, Sankarankovil, Tirunelveli Dist.

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